# DOMICILIATION AGREEMENT

This agreement is effective as of the 1st day of November 2024

BETWEEN

1. **RAM Law Firm**, Annamaria RANIERI, Avocat à la Cour, registered with the Luxembourg Bar Association, at the List I, with offices located at 24/28 Rue Goethe, L-1637 Luxembourg (hereinafter referred to as the "**Domiciliary Agent**")

AND

2. **H-Securitisation S.C.S.p,** Luxembourg special limited partnership, with its registered office at L-1882 Luxembourg, 12C rue Guillaume J. Kroll, represented by the directors of its general partner, Boundless S.à r.l., and registered with the Luxembourg Business Registers under number B246195 (hereinafter referred to as the "**Company**").

It is hereby agreed as follows:

## Article 1. Purpose of the Agreement

*Article 1.1*

The Company is authorized to establish its registered office in accordance with the Law of 31 May 1999 on domiciliation of companies, as amended (the "**Domiciliation Law**") and under the terms and conditions of this Agreement.

The Company is authorized to hold meetings of its managing and legal or statutory corporate bodies in the premises of the Domiciliary Agent.

*Article 1.2*

The Domiciliary Agent shall have the right to require the Company to transfer its registered office to any other address, including any change of address of the Domiciliary Agent.

## Article 2. Duties of the Company

*Article 2.1*

The Company must report transparently to the Domiciliary Agent the true identity of its members, including the real identity of its shareholders and its beneficial owners, and provide the related identification documents and any other documents as deemed appropriate by the Domiciliary Agent.

For the purpose of enabling the Domiciliary Agent to comply with all its legal and professional obligations, the Company is required to communicate to the Domiciliary Agent, in addition to documents and papers referred to above, any changes that may occur or is reached regarding the identity of its members or the one of its bodies or its shareholders, or its beneficial owners or persons on whose behalf the shareholders or members may act and / or hold shares.

*Article 2.2*

The Company will strictly comply with all laws, regulations and administrative provisions in force in the Grand Duchy of Luxembourg and abroad and commits itself to abstain from breaching any law, public order or morality.

In accordance with the laws and regulations in force in the Grand Duchy of Luxembourg, the Company shall undertake to comply with the legal obligations regarding the bookkeeping, preparation of annual balance sheets, submission of annual accounts to the shareholders or partners of the Company and the holding of meetings of the relevant bodies. The company further undertakes to file the required documents with the Trade and companies registrar for a further publication in the "Recueil électronique des sociétés et associations" if applicable.

Where the Company enjoys a special status, it undertakes to comply strictly with such status, particularly regarding the limits set by legislation, regulations, circulars or Luxembourg administrative practices. The Company undertakes to comply with all applicable laws and regulations within the fight against money laundering and against terrorism financing.

The Company is informed that the Domiciliary Agent, where provided by anti-money laundering laws and regulations, is required to report any fact or suspicion of money laundering or terrorism financing to the Luxembourg Bar Chairman (Bâtonnier), as it is under an obligation to cooperate with the Public Prosecutor, without having the right to disclose any information to the concerned persons.

*Article 2.3*

The Company commits to maintaining its headquarters at its registered address (domicile) and at its statutory seat within the meaning of Article 2, paragraph 3 of the Law of 10 August 1915 on commercial companies.

The Company undertakes that any mail addressed to the Company will be sent at the registered address of the Company, while ensuring that the name of the Domiciliary Agent is not mentioned in the address of the Company. The Domiciliary Agent may at any time receive, open and review the contents of any mail addressed to the Company or any document intended for it.

*Article 2.4*

For the duration of this Agreement, the Company undertakes to supply promptly, and keep at the Domiciliary agent office, all books, registers, documents, contracts, files and records relating directly or indirectly to operations and the administration of its business, and its balance sheets, financial statements and tax returns as well.

The same applies for corporate documents of the Company, the amending acts of its articles of association, all minutes of all meetings of any of its bodies, all acts of an increase or reduction of its share capital, all attendance lists, or shareholders registers and all documents relating to loans, shareholders current account, loan to subsidiaries or shareholders, bond issue, this list being not limitative.

*Article 2.5*

The Company undertakes to provide at any time all administrative licenses or administrative permits that are required for the performance of its business and to show the original document to the Domiciliary Agent.

*Article 2.6*

The Company undertakes to refrain from anything that might give third parties the impression that it has another relationship with the Domiciliary Agent than the one between a domiciled company and Domiciliary agent and not to make any use of the Domiciliary Agent's name (especially in its acts, letters or other documents) without written agreement from the latter.

*Article 2.7*

The Company shall promptly inform the Domiciliary Agent of any dispute and potential conflict, possible or existing, of whatever nature, subject or potentially subject to legal civil, commercial or criminal, or an administrative or fiscal proceedings, or arbitration proceedings, in Luxembourg or abroad.

Furthermore, the Company shall promptly inform the Domiciliary Agent of any litigation or proceedings it contemplates to file against one of its bodies or against a third party, and about the reasons and purpose pursued by these proceedings.

## Article 3. Rights and Obligations of the Domiciliary Agent

*Article 3.1*

As part of this Agreement, the Domiciliary Agent will:

(a) without any other obligation than to forward them to the directors / managers of the Company, accept all notifications and notices, correspondence and other communications addressed to the Company or any of its members or bodies, the Domiciliary Agent is authorized to open the mail it receives and to read the content;

(b) keep the register of registered shares of the Company and any other document required to be kept at the registered office of the Company under applicable laws and regulations of the Grand Duchy of Luxembourg.

*Article 3.2*

By accepting to domicile the Company, the Domiciliary Agent undertakes to perform this task in the best interest of the Company, but within the scope of the law, the articles of association and regulations and in particular the rules governing the profession of lawyer, morality and personal situation of the Domiciliary Agent require it, according to his discretion. The Domiciliary Agent is not obliged to fulfil obligations that breach the laws and regulations or the ethics of his profession.

The Domiciliary Agent will pay particular attention to compliance with all provisions of the law on domicile, the law of 12 November 2004 on the fight against money laundering and against financing of terrorism, the provisions deriving from the Code of Ethics of the Luxembourg Bar Association and all relevant circulars and must require all documents and records that would evidence compliance with hereinabove listed rules.

## Article 4. Services not covered by the domiciliation agreement

It is agreed between the parties that this agreement does not include acceptance by the Domiciliary Agent or any of its partners, employees or associates of any office in representative bodies of the Company.

It is agreed that the Domiciliary Agent will neither support nor be responsible for the management of the Company, the bookkeeping, preparation of balance sheets, tax returns and VAT (or subscription tax) returns, for specific applications or declarations to the authorities including to the Trade and companies registrar as well as to the Beneficial owners register, annual reports or periodicals of any kind should be filed with any governmental or administrative authorities, the stock exchange or banks or any other public or private authority. Moreover, the Domiciliary Agent will not be responsible for any acts, activities or audit of the accounts from the Company. However, in compliance with the law establishing the Beneficial owners register, the Domiciliary Agent is obliged to inform the Beneficial owners register's administrator as soon as the Domiciliary Agent observes, either the presence of wrong/false data or lack of all or parts of data in the Beneficial owners register, either an absence of registration, an amendment or a deregistration, within a period of 30 days following such finding.

All potential activities of representation or legal advice in favour of the Company performed by the Domiciliary Agent or any of its partners or employees are not covered by the Domiciliary Agent's obligations under this Agreement.

## Article 5. Confidentiality

*Article 5.1*

The Domiciliary Agent shall keep secret and undertakes to observe confidentiality concerning all facts, information and all operations relating directly or indirectly to the Company. The obligation of secrecy ceases only when disclosure of information is authorized or required by or under any legal provision.

The Domiciliary Agent in particular has a legal duty of informing, therefore the Domiciliary Agent is authorized to inform the Beneficial owners register's administrator as soon as a finding occurs, either of the presence of wrong/false data or lack of all or parts of data in the Beneficial owners register, either of the absence of a filing, amendment or deregistration.

*Article 5.2*

The Domiciliary Agent remains free to enter into all agreements, including Domiciliation Agreements, with any other company, be it a competitor or an opponent.

## Article 6. Disclaimer and Limitation of Liability

*Article 6.1*

All risks of whatever nature arising out of or relating to the domiciliation of the Company at the address of the Domiciliary Agent will be the exclusive responsibility of the Company and its beneficial owners, which are jointly and severally liable.

The parties expressly agree that the obligations on the Domiciliary Agent constitute only obligations of means. The parties agree that Domiciliary Agent's liability may only be engaged by the Company, its representative bodies, its promoters or its shareholders in case of gross negligence or wilful misconduct.

*Article 6.2*

The Company and their beneficial owner(s) expressly undertake to keep the Domiciliary Agent and / or its partners and / or its associates and / or its employees, if any, free from any damages, convictions, charges, taxes, expenses, fees, this list being not exhaustive, where the Domiciliary Agent and / or its partners and / or its associates and / or its employees if any, might have to pay or bear within a dispute or conflict arising directly or indirectly from this Agreement or relating services including Company's business activity.

## Article 7. Remuneration of the Domiciliary Agent

*Article 7.1*

The Company will pay to the Domiciliary Agent the remuneration provided in the applicable rate for the domiciliation of companies or other remuneration mutually agreed in a separate document.

The Company will also reimburse expenses advanced on demand or paid as deemed necessary by the Domiciliary Agent.

Any work provided by the Domiciliary Agent which do not fall within the scope of hereinabove listed activities will be charged in addition.

*Article 7.2*

The Domiciliary Agent may retain all the documents, books, records and files concerning the Company and located in its premises until full payment of its fees and expenses.

## Article 8. Notice and Termination

*Article 8.1*

This Convention is concluded for a term expiring with the term of the Company or the completion of its liquidation thereof. It may be terminated at any time by each party without obligation to give a reason or justification, by registered mail with a 3 (three) months' prior notice.

*Article 8.2*

However, this agreement may be terminated at any time with immediate effect by registered mail, without prior notice, by either party for valid reasons.

Be considered a valid reason within the meaning of this section:

- Non-compliance by the other party of its legal or regulatory obligations;
- Non-compliance by the other party of obligations under this Agreement;
- Amendment by the Company or its promoters to the composition of the shareholding and / or persons who compose the bodies of the Company without information to the Domiciliary Agent, without satisfactory disclosure of the true identity of these persons to the Domiciliary Agent and without approval of Domiciliary Agent about these changes;
- Not providing the Domiciliary Agent with documents and information as it deems necessary to fulfil its obligation to identify or to assess the Company's activity;
- Amending the corporate object of the Company or to carry out civil and commercial activities that are contrary to the object of the Company;
- The involvement of the Company in a conflict or dispute that would be likely to prejudice the reputation of the Domiciliary Agent or likely to bring discredit upon it;
- The opening of any proceedings leading to a supervised/ controlled management, to the liquidation, bankruptcy, to an arrangement with creditors or any other similar insolvency proceedings, under Luxembourg law or foreign law relating to the Company;
- The filing of wrong/false data in the Beneficial owners register by the Company, its promoters, directors or mangers or failing to file, amending or deregistration data in the Beneficial owners register by the Company, its promoters, directors or managers.

*Article 8.3*

According to the law on domiciliation where this domiciliation agreement ends, the Domiciliary Agent, as appropriate, will file the termination notice by with the Luxembourg Trade and companies registrar for a further publication in the "Recueil électronique des sociétés et associations". It is also authorized to inform any third party by the means it deems appropriate.

The termination of the domiciliation agreement should be done each time by registered mail, with return receipt requested, addressed to the domicile of the Domiciliary Agent to the extent that the termination is decided by the Company, and to the address of the Company since the termination is decided by the Domiciliary Agent.

In case of any obstacle to the delivery of registered letters, as indicated above, the termination takes however effect at the date the registered letters are mailed and no later than the filing date of the domiciliation's termination with the Trade and companies registrar.

*Article 8.4*

After termination of the domiciliation agreement and subject to payment of fees and costs outstanding, the Domiciliary Agent shall agree to return all books, records, contracts and other documents belonging to the Company in its possession to the management body of the Company, such delivery to be at the Domiciliary Agent premises against receipt.

Where, after termination of the domiciliation agreement, the Company or its managing bodies fail to take delivery and receipt of books and other documents held by the Domiciliary Agent, within a 30 days period following a registered mail by the Domiciliary Agent for this purpose, the Domiciliary Agent will be authorized to deposit all such books, records, contracts and other documents belonging to Company, at the expense thereof, with a custodian he shall choose in its sole discretion and Domiciliary Agent will then be absolved of any liability for the safe-keeping of these documents.

*Article 8.5*

The Domiciliary Agent is entitled to retain all the documents that were used for the identification of the shareholders, the beneficial owner(s) and/or any member of the corporate bodies of the Company as well as all the documents which might be necessary in order for the Domiciliary Agent to be able to comply with its duties under the "Know Your Customer" rules as set forth by any law, regulation or guideline issued the competent authorities and to be able to assess the Company's activities as well as its financial situation.

## Article 9. Election of Domicile and Correspondence

*Article 9.1*

The parties to this Agreement expressly elect domicile at the addresses mentioned on the first page of this Agreement and any communication, notice or service can be validly made to the addresses specified therein.

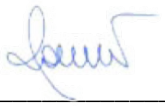
The election of domicile shall be valid until one party has properly notified, by registered mail, such other address with change of domicile to the other party.

## Article 10. Governing Law and Jurisdiction

This agreement is governed by Luxembourg law and is subject to the exclusive jurisdiction of the competent courts of the judicial district of Luxembourg.

*Signature page follows*

Made in Luxembourg, in triplicate the 1st day of November 2024



Annamaria Ranieri

obo the Domiciliary Agent



Milo Guastamacchia

Director, Boundless S.à r.l.

obo the Company



Estelle N'zoungou

Director, Boundless S.à r.l.

obo the Company